

End User Licence Agreement - Drumless Studio

Publisher: TristanDumesny ("Publisher", "we", "us", "our")

Application: Drumless Studio (the "App")

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By installing or using the App, you agree to this Agreement. If you do not agree, do not install or use the App.

1. Licence

Subject to this Agreement and the applicable Microsoft Store terms, we grant you a personal, limited, non-exclusive, non-transferable and revocable licence to install and use the App on devices you own or control. Device and household-use limits may also be set by the Microsoft Store.

This Agreement supplements any Microsoft Standard Application Licence Terms that apply to the App. If there is an inconsistency, mandatory law and the applicable Microsoft Store terms take priority.

We and our licensors retain all rights not expressly granted to you.

2. Free preview, purchases and subscriptions

The App is free to download. Without an active paid entitlement, each newly processed project is limited to the first 60 seconds and audio exports from that preview are locked. A monthly or annual Microsoft Store subscription provides unlimited complete-song processing and exports while that subscription is active. A project completed or upgraded to full access while the subscription is active remains fully playable and exportable on that device after the subscription ends. A complimentary, non-expiring entitlement may also be granted to selected users through the Microsoft Store; it is not offered for sale in the App.

Prices, billing periods, availability and any promotional terms are those shown by the Microsoft Store at the time of purchase. Prices displayed in the App are provided by the Store and may be localized or changed in Partner Center.

Microsoft processes Store purchases and manages Store billing, renewals, cancellations and refund requests through your Microsoft account. Any recurring subscription renews in accordance with the terms displayed by Microsoft at the time you subscribe, unless cancelled through your Microsoft account.

Nothing in this section limits any refund, cancellation or other right that cannot lawfully be excluded, including rights under the Australian Consumer Law.

3. Your audio and responsibility for rights

This section is important. Please read it.

The App is a tool that processes audio files you select. We do not provide, host, recommend or distribute musical recordings or compositions for you to process.

You agree that:

- 1 you own the audio you process, or have all rights, licences, consents and permissions needed to process it and use the resulting output for your intended purpose;

- 2 you will not use the App to infringe copyright, moral rights, performers' rights, privacy rights or any other rights;
- 3 you are responsible for deciding whether your use of particular audio and output is lawful in your jurisdiction, including whether an exception such as fair dealing, fair use, research or private study applies; and
- 4 you will not distribute, perform, broadcast, sell or publish audio or output unless you have the legal right to do so.

Outputs such as separated stems, mixes and click tracks are generated from the audio you provide and may reproduce protected parts of that audio. The App and this Agreement do not give you any additional rights in the underlying recording or composition.

Audio processing occurs locally on your device. We do not receive or monitor the audio you process unless you voluntarily send a file to us, for example in a support email. See the Privacy Policy for details.

4. Acceptable use

You must not:

- use the App for an unlawful or fraudulent purpose;
- use it to infringe another person's rights;
- bypass, disable or interfere with licensing, payment, security or access-control features;
- reverse engineer, decompile or disassemble the App, except to the extent that applicable law expressly permits this despite this restriction;
- resell, rent, lease, sublicense or redistribute the App except where permitted by applicable Microsoft Store terms; or
- introduce malicious code or deliberately interfere with the App or another person's device.

5. Third-party components

The App includes third-party and open-source components. Those components remain subject to their own licence terms, which are identified in the Third-Party Notices supplied with the App. If a third-party licence grants rights that conflict with this Agreement, that third-party licence controls for the relevant component.

6. App operation, output and backups

Audio separation, beat detection, tempo detection, time-signature detection and generated click-track placement are automated and inherently imperfect. Results vary between recordings. Click tracks may contain missing, surplus or misplaced beats, incorrect accents, tempo changes or count-in timing, and other output may contain errors, bleed, artefacts or incorrect timing information.

You are responsible for listening to and reviewing output before relying on, rehearsing, publishing or performing with it. You are also responsible for keeping backups of important audio, projects and exported files. To the extent permitted by law, we are not responsible for loss caused solely by your deletion of files or failure to keep a backup.

7. Consumer rights and warranties

The App is supplied subject to rights and guarantees that cannot lawfully be excluded. In Australia, these include rights under the *Competition and Consumer Act 2010* (Cth), including the Australian Consumer Law.

Except for those non-excludable rights, and to the maximum extent permitted by law, the App is provided "as is" and "as available". We do not promise that the App will be uninterrupted, error-free, compatible with every device or audio file, or achieve a particular separation or analysis result.

Nothing in this Agreement is intended to exclude, restrict or modify any right, guarantee, remedy or liability where doing so would be unlawful.

8. Liability

To the maximum extent permitted by law, we are not liable for indirect, incidental, special or consequential loss, or for loss of profit, revenue, goodwill, anticipated savings or data, arising from use of the App.

Where our liability may lawfully be limited, our total aggregate liability for claims arising from the App or this Agreement is limited to the amount you paid for the App and its paid features during the twelve months before the event that gave rise to the claim.

This section does not apply to liability that cannot lawfully be excluded or limited, and does not reduce your rights under the Australian Consumer Law.

9. Responsibility for unlawful use

To the maximum extent permitted by law, you are responsible for loss reasonably incurred by us as a direct result of your intentional unlawful use of the App or your material breach of section 3 or 4. You are not responsible under this section to the extent the loss was caused by our negligence, breach of this Agreement or unlawful conduct.

10. Suspension and termination

You may stop using and uninstall the App at any time.

We may suspend or terminate your licence if you materially breach this Agreement and, where the breach can be remedied, you fail to remedy it after reasonable notice. We may act immediately where necessary to address serious unlawful use, security risks or interference with licensing systems.

On termination, you must stop using the App. Sections 3, 5, 7, 8, 9, 11 and 13 continue to apply where relevant.

11. Governing law

This Agreement is governed by the laws of Victoria, Australia. You submit to the non-exclusive jurisdiction of the courts of Victoria and the Commonwealth of Australia.

If you acquired the App elsewhere, mandatory consumer laws in your place of residence may also apply.

12. Changes to this Agreement

We may update this Agreement to reflect changes to the App, law, security or our business practices. Material changes will be notified through the App or the Microsoft Store listing before or when they take effect.

Changes apply prospectively. They do not remove rights already acquired under a completed purchase except where a change is required by law, security or the applicable Microsoft Store terms.

13. General

If any provision is invalid or unenforceable, the remaining provisions continue to apply. A failure to enforce a provision is not a waiver of that provision.

14. Contact

drumlessstudio@gmail.com